

6	Carlin vs. Reiser 30-2025-01454477	<u>Motion to Dismiss</u> Defendant Hon. Glen M. Reiser (Ret.)’s Motion to Dismiss as a Defendant is GRANTED. Defendant Hon. Glen M. Reiser (Ret.) is DISMISSED with prejudice. Defendant Hon. Glen M. Reiser (Ret.)’s Request for Judicial Notice in Support of Motion to Dismiss as a Defendant is GRANTED as to Exhibits A-D. (See Evid. Code, § 452, subd. (d).) <u>Pending Motion</u> Defendant Hon. Glen M. Reiser (Ret.) (Defendant Reiser) moves to be dismissed from this action pursuant to Civil Procedure Code section 581(f)(2). <u>Standard for Dismissal</u> Civil Procedure Code section 581 states that: (f) The court may dismiss the complaint as to that defendant when: (1) Except where Section 597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal. (2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal. (3) After a motion to strike the whole of a complaint is granted without leave to amend and either party moves for dismissal. (4) After a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal. (Code Civ. Proc., § 581, subd. (f).)
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	Therefore, pursuant to Section 581(f)(2), if a demurrer is sustained with leave to amend as to all causes of action against a defendant and the time to amend has expired, that defendant may seek dismissal. (<i>Haidet v. Del Mar Woods Homeowners Ass’n</i> (2024) 106 Cal.App.5th 530, 535-536.) In this case, on September 24, 2025, the court sustained the demurrer of Defendant Hon. Glen M. Reiser, Ret. as to all 8 causes of action of the Complaint with 15 days leave to amend. (See ROA #166.) More than 9 months later, Plaintiff still has not amended the Complaint. Thus, Defendant Reiser is entitled to a dismissal pursuant to Section 581(f)(2). Plaintiff, however, argues that dismissal is discretionary and that the court should not dismiss Defendant Reiser due to the fact that this case has presented unusually complicated procedure postures involving overlapping demurrers and anti-SLAPP motions that have affected the scope of the leave to amend. Specifically, Plaintiff refers to the fact that Defendants Matthew G. Stein, Christina Yee, and Leonard S. Carlin all filed Special Motions to Strike pursuant to the Anti-SLAPP statute, Civil Procedure Code section 425.16. However, on September 29, 2025, the court specifically rejected a proposal that Plaintiff not be allowed to amend the Complaint until the court ruled on the Special Motions to Strike. (See ROA #174 at p. 3.) The court indicated that Plaintiff could amend the Complaint but that “because the demurrers were not brought by Defendants Matthew G. Stein, Christina Yee, and Leonard S. Carlin, Plaintiffs are barred from amending the claims against those Defendants in an effort to respond to the Anti-SLAPP Motions.” (<i>Ibid.</i>) Nonetheless, even assuming Plaintiff was hesitant to amend the Complaint until after the court ruled on the Special Motions to Strike, the court issued its ruling on those motions on January 15, 2026. (ROA #195.)
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		Plaintiff has not amended the Complaint in the almost 5 ½ months since then. Plaintiff also contends that the court's ruling on the Special Motions to Strike, the court stated that "[a]t the request of the parties, the court will provide a further, detailed explanation of its rulings above." (See ROA #195 at p. 2.) However, the court's ruling on the Special Motions to Strike clearly indicated that motions were granted as to all 8 causes of action asserted against Defendants Matthew G. Stein and Christina Yee, and as to the 1st, 5th, 6th, 7th, and 8th Causes of Action asserted against Defendant Leonard S. Carlin (and denied as to the 2nd, 3rd, and 4th Causes of Action against Defendant Leonard S. Carlin). Further, the court did not grant leave to amend as to any of the moving defendants. (See <i>Dickinson v. Cosby</i> (2017) 178 Cal.App.5th 655, 676 ["Although the anti-SLAPP statute does not specifically state it, a plaintiff whose complaint is stricken by a successful anti-SLAPP motion cannot try again with an amended complaint. There is no such thing as granting an anti-SLAPP motion with leave to amend."].) Thus, as of January 15, 2026, Plaintiff understood that the court had sustained Defendant Reiser's demurrer and that Plaintiff needed to amend the Complaint as to all of the causes of action asserted against Defendant Reiser. Plaintiff also understood that he could only assert the 2nd, 3rd, and 4th Causes of Action Defendant Leonard S. Carlin. The detailed explanation of the court's ruling on the Special Motions to Strike would be of no utility to Plaintiff because the motions were granted without leave to amend as to all the causes of action asserted against Defendants Matthew G. Stein and Christina Yee, and as to 5 of the 8 causes of action against Defendant Leonard S. Carlin. As to the remaining 3 causes of action against Defendant Leonard S. Carlin, Plaintiff did not need to and was not allowed to amend those.
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		In fact, it does not appear that Plaintiff was waiting on the detailed explanation as he did not request it until May 22, 2026, more than 4 months after the court issued its ruling on the Special Motions to Strike. (See ROA #221.) (fn.1) (fn.1) While Defendant Leonard S. Carlin did request the detailed explanation on February 2, 2026, the court clerk's office inadvertently did not process it until May 2026. For at least 5 months (and as many as 9 months), Defendant Reiser has been laboring under the impression that Plaintiffs were not asserting claims against him. It would be unfair and prejudicial to allow Plaintiff to revive claims that have been abandoned months ago. Defendant Reiser shall give notice of this ruling.
7	Bank of America N.A. vs. Husain 30-2025-01455851	<u>Motion to Set Aside</u> Defendant Manzur Husain's Motion to Set Aside Default and Vacate Default Judgment is GRANTED. The Default entered against Defendant Manzur Husain on April 22, 2025 is SET ASIDE. The Default Judgment against Defendant Manzur Husain issued on May 6, 2025 is VACATED. Defendant Manzur Husain is ORDERED to file his answer to the Complaint within 15 days of this ruling, and to serve his answer on all parties that have appeared in this matter within 60 days of this ruling. The court SETS a Case Management Conference for October 15, 2026 at 9:00 a.m. in Department N15. <u>Pending Motion</u> Defendant moves to set aside the Default entered against him on April 22, 2025 (ROA #15) and the Default Judgment against him issued on May 6, 2025 (ROA #14) pursuant to Civil Procedure Code section 473.5 and 473(d). Defendant also requests a stay of enforcement of the Default Judgment and permission to file and serve an answer to the Complaint filed by Plaintiff Bank of America, N.A.